

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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LUIS PADILLA, JR.,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN W. SHEEHAN- Shield No.26103, POLICE
OFFICER RYAN MCMAHON, POLICE OFFICER
LIAM DALE, POLICE OFFICER STEVEN PARSELL,
POLICE OFFICER DETECTIVE JENNIFER L.
CORDERO- Shield No. 366, and JOHN AND JANE
DOES-Police Officers as yet unidentified,

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER STEPHEN W. SHEEHAN-
Shield No.26103
c/o New York City Police Department- 104th
Precinct
64-02 Catalpa Avenue
Ridgewood, New York 11385

POLICE OFFICER RYAN MCMAHON
c/o New York City Police Department- 104th
Precinct
64-02 Catalpa Avenue
Ridgewood, New York 11385

Index #

Date of filing:

Plaintiff designates Queens
County as the place of trial

Basis of the venue is the Locus
of Occurrence

SUMMONS

Plaintiff resides at
54-55 64th Street
Maspeth, New York 11378

County of Queens

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

Defendant's address:

POLICE OFFICER LIAM DALE
c/o New York City Police Department- 104th
Precinct
64-02 Catalpa Avenue
Ridgewood, New York 11385

POLICE OFFICER STEVEN PARSELL
c/o New York City Police Department- 104th
Precinct
64-02 Catalpa Avenue
Ridgewood, New York 11385

POLICE OFFICER DETECTIVE JENNIFER L.
CORDERO- Shield No. 366
c/o New York City Police Department- 104th
Precinct
64-02 Catalpa Avenue
Ridgewood, New York 11385

Dated: Brooklyn, New York
December 1, 2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
LUIS PADILLA, JR.,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN W. SHEEHAN- Shield No.26103, POLICE
OFFICER RYAN MCMAHON, POLICE OFFICER
LIAM DALE, POLICE OFFICER STEVEN PARSELL,
POLICE OFFICER DETECTIVE JENNIFER L.
CORDERO- Shield No. 366, and JOHN AND JANE
DOES-Police Officers as yet unidentified,Defendants.
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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF LUIS PADILLA, JR.**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Queens, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on March 23, 2021, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof,

and that thereafter, and within the time provided by law, this action was commenced.

5. That prior hereto on April 13, 2021, and within the time prescribed by law, a sworn Amended Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on October 28, 2021.

7. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified as police officers, agents, servants and/or employees.

8. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the plaintiff, LUIS PADILLA, JR., was lawfully present at or about the basement of the premises located at 54-55 64th Street, in the County of Queens, City and State of New York.

9. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, LUIS PADILLA, JR., was approached and was assaulted and battered by the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet

unidentified. The assault and battery consisted of being shot multiple times by the defendant, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103 and was struck with a Taser device fired by defendant, POLICE OFFICER LIAM DALE. The plaintiff was handcuffed and then was transported to Elmhurst Hospital in an ambulance by the Emergency Medical Services, for treatment of his injuries. The plaintiff remained at the hospital where he underwent multiple surgeries as a result of the assault and battery from the use of a firearm, particularly a gun and a Taser and/or other conductive energy device by the defendant police officers. The plaintiff was released from the hospital and was issued a baseless criminal charges while under police custody on February 5, 2021. It was discovered that a false statement was made by the defendants that the plaintiff had threatened the police officers with a knife on the date in question.

10. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, plaintiff, LUIS PADILLA, JR., was assaulted and battered by defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

11. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

12. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, LUIS PADILLA, JR., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

13. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

14. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

15. By the reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENCE
IN SHOOTING ON BEHALF OF LUIS PADILLA, JR.**

16. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "15" inclusive with the same force and effect as if more fully set forth at length herein.

17. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the plaintiff, LUIS PADILLA, JR., was present at his residence located at 54-55 65th Street, in the County of Queens, City and State of New York.

18. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, acting as agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, were dispatched at the plaintiff's residence at the aforementioned location.

19. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the plaintiff was negligently shot multiple times by the defendant, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No. 26103 and tasered by the defendant,

POLICE OFFICER LIAM DALE.

20. The shooting and/or the use of a firearm, particularly a gun by the defendant, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, towards the plaintiff, LUIS PADILLA, JR., was without probable cause.

21. The use of a Taser and/or other conductive energy device by the defendant, POLICE OFFICER LIAM DALE to the plaintiff, LUIS PADILLA, JR., was without probable cause.

22. The aforementioned shooting of a firearm, particularly a gun used by the defendant, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103 and the use of a Taser and/or other conductive energy device were performed knowingly, intentionally and willfully.

23. The aforementioned shooting of a firearm, particularly a gun used by the defendant, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103 and the use of a Taser and/or other conductive energy device were performed negligently and recklessly.

24. The negligence of all defendants contributed to the shooting of a firearm and the use of a Taser and/or other conductive energy device of the plaintiff.

25. The aforementioned shooting of a firearm and the use of a Taser and/or other conductive energy device were performed without reason or provocation.

26. The aforementioned shooting was due to the negligent manner in which the defendant, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, was conducting himself as a police officer.

27. The shooting of the plaintiff, LUIS PADILLA, JR., by the defendant, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, was due to the negligence of this defendant as he acted in a negligent manner that a reasonably prudent police officer would not have done under the circumstances.

28. That at all times hereinafter mentioned, the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE

OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, acting as agents, servants and/or employees of the defendant, THE CITY OF NEW YORK, engaged in the actions and conduct alleged herein in their official capacity as New York City Police Officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

29. By the reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF LUIS PADILLA, JR.**

30. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "29" inclusive with the same force and effect as if more fully set forth at length herein.

31. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, LUIS PADILLA, JR.

32. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet

unidentified, and continued to employ them and allowed them to be in contact with the public at large.

33. By the reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF LUIS PADILLA, JR.**

34. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, LUIS PADILLA, JR.

36. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

37. That as a result of the aforesaid false arrest and confinement, the plaintiff, LUIS PADILLA, JR., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

38. By the reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF LUIS PADILLA, JR.**

39. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "38" inclusive with the same force and effect as if more fully set forth at length herein.

40. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, LUIS PADILLA, JR.

41. That the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff, LUIS PADILLA, JR., against his will and said confinement was not privileged.

42. By the reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR NEGLIGENT
TRAINING ON BEHALF OF LUIS PADILLA, JR.**

43. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "42" inclusive with the same force and effect as if more fully set forth at length herein.

44. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the training of the defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, in the use of a firearm, particularly a gun and the use of a Taser and/or other conductive energy device towards the plaintiff at the aforementioned location.

45. That the defendant, THE CITY OF NEW YORK, breached its duty to the public and more particularly to the plaintiff by failing to use reasonable and ordinary care in the training of their employees, agents and/or servants, including but not limited to POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

46. By the reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF OF LUIS PADILLA, JR.**

47. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "46" inclusive with the same force and effect as if more fully set forth at length herein.

48. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL,

POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

49. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, LUIS PADILLA, JR.

50. That as a result of said intentional and negligent acts, the plaintiff, LUIS PADILLA, JR., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

51. By reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON BEHALF OF LUIS PADILLA, JR.

52. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "51" inclusive with the same force and effect as if more fully set forth at length herein.

53. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

54. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER STEPHEN W. SHEEHAN- Shield

No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, LUIS PADILLA, JR.

55. That on January 8, 2021, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

56. By reason of the foregoing, plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF LUIS PADILLA, JR.**

57. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "56" inclusive with the same force and effect as if more fully set forth at length herein.

58. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, LUIS PADILLA, JR.

59. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

60. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

61. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

62. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

63. As a direct and proximate result of this unlawful conduct, the plaintiff, LUIS PADILLA, JR. sustained the damages hereinbefore alleged.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF LUIS PADILLA, JR.**

64. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "63" inclusive with the same force and effect as if more fully set forth at length herein.

65. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

66. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER STEPHEN W. SHEEHAN- Shield No.26103, POLICE OFFICER RYAN MCMAHON, POLICE OFFICER LIAM DALE, POLICE OFFICER STEVEN PARSELL, POLICE OFFICER DETECTIVE JENNIFER L. CORDERO- Shield No. 366, and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

67. By the reason of the foregoing, the plaintiff, LUIS PADILLA, JR., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action;

plaintiff, LUIS PADILLA, JR., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
December 1, 2021

Yours, etc.,



SCOTT E. RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
LUIS PADILLA, JR.
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 21LP01-08

ATTORNEY'S VERIFICATION BY AFFIRMATION

SCOTT E. RYNECKI, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQs., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
December 1, 2021



SCOTT E. RYNECKI, ESQ.